

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yazmin Sanchez	Team: Team # 8	CCRB Case #: 200200808	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 01/27/2002 4:00 AM	Location of Incident: 52nd precinct	Precinct: 52	18 Mo. SOL 7/27/2003	EO SOL 7/27/2003	
Date/Time CV Reported Wed, 01/30/2002 2:09 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/06/2002 11:24 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Alps	02049	926498	052 PCT
2. POM Timothy Allen	00166	926494	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christop Allen	04640	926493	052 PCT
2. POM Shawn Ingalls	08443	926978	052 PCT
3. SGT Frank Calderone	00570	883582	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Thomas Alps	Force: PO Thomas Alps used physical force against § 87(2)(b)	
B.POM Timothy Allen	Force: PO Timothy Allen used physical force against § 87(2)(b)	

Synopsis

§ 87(2)(b) was arrested for threatening his wife's friend with a knife and damaging his girlfriend's apartment because he refused to be the godparent of his baby. Officers including PO Christopher Allen and PO Shawn Ingalls arrested § 87(2)(b) while he was still in possession of several knives. PO Thomas Alps and PO Timothy Allen were assigned the arrest because the incident happened in their sector. PO Thomas Alps and PO Timothy Allen dealt with § 87(2)(b) at the precinct and he alleges that the officers assaulted him by pushing him into a wall and dragging him in the cell. In fact, § 87(2)(b) has a five million-dollar lawsuit against the city because of the incident. § 87(2)(g) R

Summary of Complaint

§ 87(2)(b) who is § 87(2)(b) old, is 5'10" and weighs 285 pounds provided a statement to Internal Affairs on 1/30/02 and to the CCRB on 2/21/02 (enc. 5). § 87(2)(g) § 87(2)(b) According to § 87(2)(b) on 1/27/02, he and his wife, § 87(2)(b) were at the home of his wife's friend, § 87(2)(b) and her boyfriend § 87(2)(b) for a party. § 87(2)(b) and § 87(2)(b) reside at § 87(2)(b), in the Bronx (see Complaint Report, enc. 23). At 4:00 AM, § 87(2)(b) and § 87(2)(b) got into a dispute over § 87(2)(b) refusing to be the godfather of § 87(2)(b)'s child. Since § 87(2)(b) thought that § 87(2)(b) went to his bedroom to get a gun, § 87(2)(b) got a 12" knife from the kitchen. § 87(2)(b) § 87(2)(b) and § 87(2)(b)'s wife entered the bedroom, but § 87(2)(b) could not get in. He did not remember puncturing the walls or cutting the phones as indicated in the arrest report (enc. 22).

Officers, subsequently identified as PO Christopher Allen, PO Shawn Ingalls, PO Marc Rios and PO Albert Flores arrived and broke through the apartment door while § 87(2)(b) was about ten feet away from the front door. He did not hear the officers until they broke down the door because he was still in the heated dispute. The four officers told § 87(2)(b) to drop the knife, and he did. The officers then tried to handcuff him, but he resisted them. An officer pepper sprayed him; the four officers took him to the hall, and handcuffed him. § 87(2)(b) said that he did not sustain injuries during his arrest and he had no complaints about what happened during his arrest.

Two officers took § 87(2)(b) to the stationhouse. § 87(2)(b) screamed “emphatically” because of pain he felt while being pulled into the cell by his handcuffed hands and was telling the officers to let go. § 87(2)(b) could not see the officers’ faces because of his having been pepper sprayed. Officers pushed § 87(2)(b) up against a wall inside the cell (Allegations A and B – physical force). At some point, § 87(2)(b) found himself on the floor on his side; this hurt his shoulder. Though § 87(2)(b) told IAB that officers pushed him to the floor, he told the CCRB that he did not know if he fell or if he was pushed down because it “all happened so quick.” § 87(2)(b) turned on his back, moved about and screamed profanities about the handcuffs hurting him. The officers rolled § 87(2)(b) onto his stomach, pulled him by his legs away from the corner, which caused the buttons on his shirt to be ripped off, and told him to get up. The officers tried to pick him up by his handcuffs, which caused him to cry out in pain. An officer then grabbed him by the arm and hoisted him up. Finally, the officers “tossed” § 87(2)(b) to the wall; he hit the bench and his face hit the wall nose first. § 87(2)(b)

§ 87(2)(b) “passed out,” meaning he fell asleep. He sustained bruises on his chest, scratches on his stomach, and injuries to his knees and chest.

A few hours later, at about 9:00 AM, officers woke § 87(2)(b) up and told him to get up or they would drag him out. § 87(2)(b) admittedly “not too coherent so early in the morning,” refused to get up. § 87(2)(b) told a sergeant subsequently identified as Sgt. Frank Calderone that he was responsible for letting the officers “get out of hand.” § 87(2)(b) had no idea, though, if this officer was there the night before. An officer, subsequently identified as PO Thomas Alps, said he was the arresting officer and told § 87(2)(b) that he was not that tough and was crying and screaming “for Mommy last night.” § 87(2)(b) told the officer that his brother worked with § 87(2)(b). PO Alps asked § 87(2)(b) for his brother’s name § 87(2)(b), but § 87(2)(b) did not provide it because he felt that the officers had “crossed the line.” § 87(2)(b) s brother is named § 87(2)(b)

§ 87(2)(b) told the CCRB that at Central Booking, he talked to two prisoners that told him they had been in the cell with him at the 52nd precinct. A young Hispanic male in his 20’s with a prosthetic leg, subsequently identified as § 87(2)(b) asked § 87(2)(b) how his nose got cleaned up because it had been bleeding the night before. § 87(2)(b) did not know this but he looked at his clothes and noticed blood on them. An older black male in his 40’s told § 87(2)(b) that he witnessed the officers “put a hurting” on § 87(2)(b). § 87(2)(b) said that if it had not been for this man telling him what happened in the cell, he would not even know. In the morning, there had been two other male Hispanic prisoners in the cell with § 87(2)(b) but he did not speak to them. At court, § 87(2)(b) was released on his own recognizance until § 87(2)(b). While at court, § 87(2)(b) learned that “EMS” had seen him, but he did not recall this.

§ 87(2)(b) told the hospital personnel of § 87(2)(b) that police officers threw him against a wall and he hit his right knee and his head (see enc). For further information about § 87(2)(b) s medical records, see the medical records section of this report. § 87(2)(b) claimed that he lost consciousness until the next morning. He said his fingers were numb from the force of the handcuffs being pulled against his hand. § 87(2)(b) did not remember being punched or kicked, but he said his whole back hurt and so did his head. § 87(2)(b) claims he sustained a cut inside his nose, abrasions on his wrists and chest (photographed at the CCRB), head swelling, bruises on his lower back and shoulders, and knee pain. § 87(2)(b) said he has been arrested for fighting once before.

On 7/1/02, § 87(2)(b) viewed five photo arrays, which contained photographs of the five main officers associated with the complaint. § 87(2)(b) identified PO Alps (array # 3, photo # 2) as the main subject officer (see enc. 5). § 87(2)(b) identified him because this officer, he said, identified himself as the arresting officer in the morning and told him he cried for his “mommy” during the night. Hence, § 87(2)(b) figured he must have been involved in the alleged force that occurred in the cell. § 87(2)(b) claimed that in the morning, this officer entered the cell with an unknown officer and in an effort to get § 87(2)(b) fingerprinted tried to lift him up by the handcuffs and dragged him on his stomach. § 87(2)(b) would not get up; he did not want to allow the officers to fingerprint him because of the “abuse” that officers had committed towards him when they placed him in the cell. He said that the officers that placed him in the cell let him fall to the floor and at some point, officers “flung” him against the wall. § 87(2)(b) said he had on two sets of handcuffs: his right wrist was attached to the cell bars and the other handcuffs were placed on the other wrist. § 87(2)(b) reiterated that he could not identify the officers in the cell because the pepper spray blinded him.

Results of Investigation

Civilian witnesses

Present at the apartment where § 87(2)(b) was arrested was his wife, § 87(2)(b) her friend and the occupant of the apartment, § 87(2)(b) and § 87(2)(b) s boyfriend, § 87(2)(b). The only person willing to provide a statement to the CCRB about the incident was § 87(2)(b) s wife. § 87(2)(b) and § 87(2)(b) who provided their names, address and phone

number on the Complaint (enc. 23) against § 87(2)(b) did not respond to two letters sent April and June or messages five left on their answering machine in May, June, and July (see enc. 32). The 52nd precinct Prisoner Roster Record showed that several men might have witnessed the incident since they were assigned to the cell at the same time as § 87(2)(b). Those men, according to police records to be discussed below, were: § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) was the only one of these men to provide a CCRB statement (enc. 7). The rest were unavailable (see enc. 32 & 33). § 87(2)(b) refused to provide his address to the police department. Directory Assistance showed the name only in Manhattan and Brooklyn. § 87(2)(b) of Manhattan is, as per his tenant, § 87(2)(b). § 87(2)(b) of Brooklyn denied being the witness and had a different date of birth. Department of Motor Vehicles Database showed no listing for that name with his date of birth, and he had no arrest history with which to find another address. § 87(2)(b) did not respond to letters sent to his residence in April and June, which were returned as “Moved – left no address.” His name was not listed in the Coles Directory at his address and there was no listing of a phone number under his name. § 87(2)(b) did not respond to five calls, several messages left with family members, two letters, and he was not home when a field trip was conducted to his residence. § 87(2)(b) provided no telephone number to the police department and the address he provided them did not exist as per Coles Directory and Whitepages.com. The letters sent to him at that address were returned from the Post Office as “Return to sender – no such number.” Directory Assistance had no listing for him.

§ 87(2)(b)
On 7/3/02, § 87(2)(b)'s wife, § 87(2)(b) provided a statement to the CCRB (see enc. 6). § 87(2)(b) did not see or hear a physical dispute between § 87(2)(b) and her husband. As the yelling ensued, § 87(2)(b) got ready to leave. Her husband went into the kitchen and § 87(2)(b)'s friends yelled that her husband had a knife. § 87(2)(b) did not see the knife; she exited the apartment and while waiting at the elevator door, officers, subsequently identified as PO Christopher Allen, PO Shawn Ingalls, PO Marc Rios and PO Albert Flores, exited the elevator. Two more officers arrived by the stairs. § 87(2)(b) told the officers that her friends had argued with her husband in the apartment and they had all been drinking. § 87(2)(b) said she had not been drinking because she was nursing her baby. The officers asked if the baby she was holding was okay and she said yes. § 87(2)(b) said she was not hurt. § 87(2)(b) told the officers that she heard her friends say that her husband has a knife.

The officers banged on the apartment door and “eventually banged the door in.” § 87(2)(b) heard a sound like a pop. The officers told § 87(2)(b) to get down. § 87(2)(b) heard her friend say, “He’s down, he’s down already.” § 87(2)(b) was at the door, but could only see a “swarm of officers” around her husband. When the officers brought § 87(2)(b) out of the apartment, he was already handcuffed. He was not able to walk too much. The officers took § 87(2)(b) to the elevator, passing his wife who saw his face from about two feet away. § 87(2)(b) looked red in the face as if “flushed from drinking.” § 87(2)(b)'s clothes were disheveled, but his shirt was intact. § 87(2)(b) did not go downstairs with the officers. Some officers took a report.

In the morning, at about 8:00 or 9:00 AM, § 87(2)(b) went to the precinct; her husband had been taken to Central Booking. An officer told her that her husband was crying and screaming for his mother all night. § 87(2)(b) called his wife later that night. When she picked up her husband, “he was bruised up” and could barely walk. He told her that the officers, one of which was the “arresting officer,” had beaten him up at the precinct. His knee was swollen, his wrists, chest and neck had marks on them, and he had red marks around the corner of his eyes. His shirt buttons were mostly all broken off. She took her husband to the § 87(2)(b) emergency room. § 87(2)(b) said that at court, her husband paid a fine and barring any further troubles, his case will be sealed.

§ 87(2)(b)
On 7/18/02, § 87(2)(b) provided a statement from Riker’s Correctional Facility (see enc. 7). He has a prosthetic leg. § 87(2)(b) said he was arrested § 87(2)(b) at around

midnight on 1/27/02 and was taken to the 52nd precinct. He was in a cell, which measured about fifteen feet by twenty feet, with other two-five other prisoners for a few hours. Prisoners were being led out and in for fingerprinting. When § 87(2)(b) returned to the cell after being fingerprinted, he saw “a big dude” – “the only Caucasian-looking dude” – alone on the floor with handcuffs on; the man appeared to be bleeding from his nose. The man § 87(2)(b) described fit § 87(2)(b)'s description of brown hair, about 6'0” and about 250-275 pounds. § 87(2)(b) was rear-cuffed with what appeared to be one set of handcuffs. § 87(2)(b) was near the bench, in the back middle of the cell. He was facing away from the other prisoners, towards the wall, but he was also moving around. No one was sitting in the bench because § 87(2)(b) was too close to it.

When § 87(2)(b) moved around, § 87(2)(b) caught glimpses of his face, which had mucous coming out of his nose and his eyes were “tearing.” § 87(2)(b) was saying “Ow” and seemed to be crying or asking for someone, though § 87(2)(b) could not tell for whom. § 87(2)(b) “was disorientated (sic) – and didn’t know where he was – he started saying all types of crazy stuff, like basically, he was drunk, pretty much you could say.” § 87(2)(b) was not making any specific complaints of pain or allegations against officers.

§ 87(2)(b) did not get close enough to smell alcohol or pepper spray on § 87(2)(b). § 87(2)(b) was not really paying attention to § 87(2)(b) because he had his “own problems” so § 87(2)(b) took off his prosthetic leg, used it as a pillow and fell asleep. § 87(2)(b) was in the cell for a couple of hours after he was fingerprinted. Officers woke up § 87(2)(b) and rushed him to be taken to Central Booking with other prisoners. § 87(2)(b) did not go and § 87(2)(b) did not notice his condition before he left. At no point while § 87(2)(b) was there did he observe officers enter the cell.

§ 87(2)(b) and other prisoners returned to the precinct because Central Booking was overcrowded. He saw § 87(2)(b) when § 87(2)(b) was taken back to Central Booking the next morning. § 87(2)(b) believed § 87(2)(b) had been bleeding from his nose though he could not see his face much because at Central Booking, § 87(2)(b) had a purple color around his eyes and his nose.

Officer statements

PO Christopher Allen and PO Shawn Ingalls

On 4/24/02, PO Christopher Allen provided a statement to the CCRB (enc. 11). He worked with PO Ingalls in sector M. On 5/17/02, § 87(2)(g) enc. 9). PO Christopher Allen’s memo book (enc. 10) indicated that at 3:50 AM, he and his partner responded to 10-52 dispute at § 87(2)(b) and the call was made a dispute with a knife at 3:53 AM. They arrived at 3:55 AM and “barricaded perp who was intox with knife.” At 4:12 AM, the officers had one person under arrest and went to the stationhouse. At 4:45 AM, PO Alps took the arrest. PO Christopher Allen’s next memo book entry was that he responded to a 10-10 possible crime at § 87(2)(b) at 7:03 AM. PO Ingalls’ memo book added that from 5:25 AM to 7:05 AM, the officers performed a mail run. At 6:00 PM, the officers picked up a dumpster fire. At 7:07 AM, they transported one “perp” to the 52nd precinct for Conditions officers. Both officers ended their tour at 7:50 AM.

PO Christopher Allen and PO Ingalls arrived at the dispute on § 87(2)(b) before any other units. § 87(2)(b) with a baby in her hands, was leaving the apartment, crying. She told the officers that her husband was inside the apartment “going crazy” and was wielding a knife. The officers heard § 87(2)(b) screaming through the closed door. PO Flores and PO Rios of sector E arrived. The officers knocked on the door and no one answered; they kicked the door in and saw § 87(2)(b) standing about 10 feet from the door in the hallway with a kitchen knife in his hand. After § 87(2)(b) failed to respond to orders to drop the knife, PO Ingalls admittedly pepper sprayed him and he dropped the knife. He did not go down to the floor. The officers took § 87(2)(b) down to the floor; he resisted arrest but the officers were able to handcuff him. PO Ingalls did not recall if § 87(2)(b)'s face hit the floor when they took him down, but PO Christopher Allen said he went down “head-first into the floor” and hit his shoulder on the floor. No officer struck § 87(2)(b) on his face or any other part of his body. Though he continued to resist, the four officers were able to get him into handcuffs. PO Rios found two more knives in § 87(2)(b)'s pockets.

Once arrested, § 87(2)(b) would not walk on his own. It took two officers on each side of him to get him down the stairs. PO Alps and his partner did not go to the scene of the arrest; PO Alps was later assigned the arrest. The officers did not remember if a sergeant ever responded to the scene. PO Ingalls recalled seeing the cuts on § 87(2)(b)'s nose (on arrest photo) after the officers lifted him off the floor. PO Ingalls did not recall whether the cuts were there before the officers took him down or if they happened when the officers took him down. PO Allen did not know when the cuts on § 87(2)(b)'s nose occurred. PO Allen did not remember seeing any injuries on § 87(2)(b). In PO Ingalls' presence, § 87(2)(b) did not complain of pain or injuries. PO Ingalls did not recall if § 87(2)(b)'s shirt was ripped after the officers handcuffed him.

PO Rios and PO Flores took § 87(2)(b) to the stationhouse. PO Christopher Allen and PO Shawn Ingalls stayed with the occupants of the apartment, got their account and photographed the apartment from 3:55 AM to 4:40 AM, then went to the stationhouse. When they got to the stationhouse was the next time they saw § 87(2)(b). He was inside a cell, lying on the floor. According to PO Christopher Allen, he was "very uncooperative," meaning "he wasn't walking on his own; he was kind of like throwing himself on the floor almost, like a child almost." § 87(2)(b) was awake; he moaned, grunted, screamed and would not stand up. PO Ingalls briefly looked at § 87(2)(b) from a distance; the officer did not enter the cell. PO Allen did not observe officers enter the cell. When PO Ingalls got the mail later, he again just walked in and walked out with seeing § 87(2)(b). He and his partner got no meal that day because there was a homicide in the precinct and no one got meal. PO Ingalls did not recall seeing § 87(2)(b) went he went end of tour. PO Allen did not remember if he saw § 87(2)(b) when he went end of tour at the stationhouse. No comments were made about § 87(2)(b) being in the cell.

PO Thomas Alps

On 4/29/02, PO Thomas Alps who is 6'2 and weighs 190 pounds provided a statement to the CCRB (enc. 13). His memo book indicates that on his way to the dispute on § 87(2)(b), he and his partner participated in an arrest at § 87(2)(b). At 4:35 AM, he and his partner were called to the 52nd precinct stationhouse and PO Alps filled out paperwork related to § 87(2)(b)'s until 8:00 AM, when he was unable to fingerprint § 87(2)(b) because he was being uncooperative. At 9:00 AM, § 87(2)(b) again refused to be printed. At 9:35 AM, § 87(2)(b) departed the stationhouse without being fingerprinted. After the pursuant affidavit was signed at 2:30 PM, PO Alps ended his tour.

PO Alps said that when he and his partner were on their way to respond to the 10-52 dispute at § 87(2)(b) Avenue, which at first was with a firearm, they stopped someone, so sector 52M got assigned the dispute at § 87(2)(b) Avenue. The officers heard over the radio that 52M made an arrest. PO Alps and his partner never went to the scene; they went back on patrol. The officers were requested back at the stationhouse and were assigned § 87(2)(b)'s arrest. At the precinct PO Alps and his partner had their first contact with § 87(2)(b). PO Alps and his partner, PO Timothy Allen, got the particulars about the arrest (which they learned involved a knife, not a gun) from PO Christopher Allen and PO Ingalls, the officers that actually made the arrest. § 87(2)(b) was in the cell when PO Alps and PO Timothy Allen arrived at the stationhouse. His hands were handcuffed.

PO Alps called for EMS to evaluate § 87(2)(b) since he was pepper sprayed. § 87(2)(b) was "highly intoxicated" and was kept handcuffed for the safety of officers, another prisoner in the cell and for his own safety. Only PO Alps and PO Timothy Allen went into the cell and had physical contact with § 87(2)(b). EMS arrived, evaluated § 87(2)(b) and left the stationhouse. PO Alps watched § 87(2)(b) during the night while he filed the paperwork. PO Alps did not see any lacerations or injuries on § 87(2)(b) at any point. § 87(2)(b) had no blood on him. § 87(2)(b) was "very combative," kept falling off the seat in the cell onto his side, and PO Alps kept going back into the cell and helping him back on his seat. § 87(2)(b) complained about the handcuffs being tight on his wrists. PO Alps checked them, saw his wrists were fine and left them. § 87(2)(b) screamed, "Mommy, mommy" all night. Finally, PO Alps sat § 87(2)(b) on the floor and handcuffed him to the cell because the other prisoner in the cell, § 87(2)(b) was scared and was

crying. PO Alps said that neither he nor his partner pulled § 87(2)(b) to the floor, pushed or placed him against a wall, or dragged him.

When § 87(2)(b) awoke hours later, he told officers that his brother works § 87(2)(b) and said he was going to file a complaint because the officers used force against him. § 87(2)(b) refused to be finger printed and was taken to Central Booking without being printed. PO Alps said no force was used against § 87(2)(b) at the precinct. PO Alps said that § 87(2)(b)'s brother, who stated he was with Internal Affairs, called the precinct and PO Alps told him what had happened with his brother's arrest.

PO Timothy Allen

On 4/29/02, PO Timothy Allen, PO Alps' partner, provided a CCRB statement (enc. 15). PO Timothy Allen is 5'7" and weighs 165 pounds. § 87(2)(g)

§ 87(2)(g), PO Timothy Allen said that when he arrived at the stationhouse, § 87(2)(b) was before the front desk. PO Timothy Allen said it was he and his partner who placed § 87(2)(b) in the cell.

§ 87(2)(g) PO Timothy Allen said that he and his partner did not drag § 87(2)(b) except maybe to sit him up but no more than that. § 87(2)(g), PO Timothy Allen said that he and his partner did not at any point push § 87(2)(b) against a cell wall or to the floor. He said that at no point was there a struggle to get him to comply with the officers inside the cell. § 87(2)(g), PO Timothy Allen, who filled out paperwork 6 to 10 feet from the cell, said no other officers had physical contact with § 87(2)(b).

§ 87(2)(g), PO Timothy Allen said that EMS was called to wash § 87(2)(b)'s eyes and said he was fine. According to PO Timothy Allen, § 87(2)(b) vomited at least once. The officers entered the cell, cleaned up the mess and cleaned him up as well. § 87(2)(b) then went to the sleep and the officers did not hear from him. § 87(2)(g), PO Timothy Allen observed no blood or injuries on § 87(2)(b) including the injuries in the photo.

Though § 87(2)(b) said he was going to have his brother, an IAB detective, go after the officers, PO Timothy Allen did not recall § 87(2)(b) accusing him or his partner of doing anything to him. When PO Timothy Allen ended his tour, he was "walking out the door" and saw his partner, PO Alps and possibly another officer in the cell about to take § 87(2)(b) to be fingerprinted. § 87(2)(b) would not get up. PO Timothy Allen said that no officers entered the cell for any other reasons other than those he stated earlier. He said no officers used physical force against § 87(2)(b).

Sgt. Frank Calderone

Sgt. Frank Calderone provided a CCRB statement on 5/8/02 (enc. 17). He was the tour 1 desk officer at the 52nd precinct until 8:02 AM on 1/27/02. Sgt. Calderone believed that PO Alps and PO Timothy Allen brought § 87(2)(b) in to the precinct. Before the desk, § 87(2)(b) appeared highly intoxicated because he was incoherent, slurred his words, and smelled of alcohol. Sgt. Calderone did not see any injuries on § 87(2)(b) not even the small cuts on the arrest photo, and he did not claim injuries. EMS was called to the stationhouse and treated him for the pepper spray.

§ 87(2)(b) was so intoxicated that the officers could not fingerprint him; he needed to be held up but was such a big man (5'9-10 & 240-50 pounds), the officers could not do this. Sgt. Calderone told the officers to leave him alone and let him sleep. Like PO Timothy Allen, Sgt. Calderone said that PO Alps and PO Timothy Allen placed § 87(2)(b) in the cell. Sgt. Calderone said that from the front desk, he can see the cell only if he leans over and looks through a glass, hence he did not actually watch the officers place § 87(2)(b) in the cell. Sgt. Calderone did not see the officers placed § 87(2)(b) against a cell § 87(2)(g), Sgt. Calderone said that § 87(2)(b) vomited while he was in the cell and that the only time officers entered the cell was to clean up the mess. Sgt. Calderone instructed PO Alps and PO Allen to clean up the vomit. Sgt. Calderone watched the entire time that the

officers were in the cell cleaning up § 87(2)(b)'s vomit and the officers had no physical contact with § 87(2)(b). At around the change of tours, when Sgt. Calderone was leaving the desk, PO Alps and PO Timothy Allen took § 87(2)(b) out of the cell and contrary to what the officers and § 87(2)(b) said, Sgt. Calderone said they fingerprinted him.

§ 87(2)(b) did not approach Sgt. Calderone before he left to state that he was holding the sergeant responsible for what happened to him at the stationhouse. Sgt. Calderone did not see any officers use physical force against § 87(2)(b) at the stationhouse. He personally had no physical contact with § 87(2)(b). Sgt. Calderone said that he did not see § 87(2)(b) close up when § 87(2)(b) was taken to Central Booking.

Medical records

§ 87(2)(b) filled out § 87(2)(b)'s Medical Treatment of Prisoner Report (enc. 18) at § 87(2)(b) at the 52nd precinct. The EMT checked the boxes not to refer § 87(2)(b) to the emergency room and that there is no need to separate him from other prisoners. The EMT wrote that he found § 87(2)(b) handcuffed in the cell; he was "drunk" and had been "maced" on the face. § 87(2)(b) was "alert" but was being "uncooperative" with the EMT. The EMT cleansed § 87(2)(b)'s face with water and § 87(2)(b) began to spit and scream to leave him alone. He was unsteady and had a small laceration to "to cheek area."

§ 87(2)(b) was triaged at § 87(2)(b) (see medical records, enc. 19). § 87(2)(b) complained of wrist pain, had abrasions on his hands from being handcuffed, stated he was pushed into wall, and an abrasion on the bridge of his nose was noted. He complained of leg, back, and shoulder pain. At § 87(2)(b), § 87(2)(b) reportedly told hospital personnel that police officers threw him against a wall and he hit his right knee and his head. § 87(2)(b) claimed that he lost consciousness until the next morning. He said he could not walk on his right leg because of his knee and said his fingers were numb from the force of the handcuffs being pulled against his hand. § 87(2)(b)'s past medical history includes a gunshot wound to his right leg, he admitted to binge drinking on occasion, and has ulcers and Diabetes.

§ 87(2)(b) did not remember being punched or kicked, but he said his whole back hurt and so did his head. He had contusions on his wrists and tenderness, redness, and swelling of his left chest and armpit area. He was not bleeding, and had no abdominal pain, blurred vision or blood in his urine. The doctor's notes indicate that despite § 87(2)(b)'s complaints of severe pain, he was sleeping comfortably when checked at three different points during the night. § 87(2)(b) had no swelling on his right knee; his head CT scan and knee and wrist x-rays showed no injury. He was released at § 87(2)(b) with a prescription for 400 mg of Motrin four times a day.

Communications records

At 3:46 AM, a man called 911 and before he could give the address or state the problem, the line went dead. A man could be heard screaming in the background during the call. "Ani Ali" of apartment: § 87(2)(b). A man named § 87(2)(b) called 911 a few minutes later from the same callback number and told the operator that an "irate" man "pulled a knife" on him at § 87(2)(b). At about 3:57 AM § 87(2)(b) called 911 again and stated that the police passed by but did not stop at his apartment. He stated that he has an "irate" Hispanic man in his apartment who pulled a knife on him and who is "beyond drunk." At 4:08 AM, A female on the floor below where the incident happened called 911 and said there appeared to be a "domestic violence" situation "really loud" possibly on her floor.

According to the radio transmissions, sector I said they had a vehicle stop so Central asked sector M to respond to the dispute at § 87(2)(b) Avenue. Another car – most likely conditions - asks to be shown as responding to the § 87(2)(b). Sector 52M stated they had one person under arrest and they asked Central to notify the sergeant. A sergeant arrived at the scene after this. Sector 52C also responded to the scene.

Police records

§ 87(2)(b)'s arrest photo showed that § 87(2)(b) had three scratches: on the tip of his nose, on the bridge of his nose, and in the middle of his forehead. Each scratch measures about ¾ of a centimeter or less. The area around his eyes appears normal (see enc. 20). The OnLine Booking Sheet and arrest report for § 87(2)(b) filled out by PO Thomas Alps, indicate that he resisted arrest and that officers used a chemical agent to overcome an assault, restrain, § 87(2)(b) and prevent his escape. According to the reports, § 87(2)(b) brandished a knife, threatened the victims, and cut the phone lines (see enc. 22). The UF61 Complaint Report filed by § 87(2)(b) and § 87(2)(b) who reside at the address where the incident occurred, indicates the same (see enc. 23). The property vouchers indicate that § 87(2)(b) had in his possession three kitchen knives (see enc. 24). The names and addresses of prisoners that may have been in the cell with § 87(2)(b) were in the Command Log (enc. 25), Prisoner Roster Record (enc. 26), and the arrest reports (enc. 30). The Command Log noted that § 87(2)(b)'s condition at 4:25 AM was intoxicated but his appearance was normal. The roll call verified the officers' sector assignments (see enc. 27).

Criminal case

The Criminal Court Complaint filed by § 87(2)(b) indicates that § 87(2)(b) swung a knife at him and his family, slashed the door behind which he and his family hid from § 87(2)(b) and cut the phone lines in the apartment (see enc. 28). According to the Complaint, PO Allen observed § 87(2)(b) holding the knife and § 87(2)(b) resisted arrest by flailing his arms and kicking his legs.

§ 87(2)(h) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civil suit

§ 87(2)(b) is suing the City of New York with representation from § 87(2)(b). The suit is for \$5,000,000. It claims personal injuries and loss of civil rights on § 87(2)(b)'s behalf as a result of being abused, assaulted, and battered at the 52nd precinct.

Criminal conviction histories

§ 87(2)(h) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officers' substantiated case

Neither PO Alps nor PO Allen have substantiated cases (see enc. 1 & 2).

Conclusions and Recommendations

Officer identification

§ 87(2)(b) identified PO Alps as the subject officer because he identified himself to § 87(2)(b) the morning after his arrest. PO Alps confirmed that he and his partner, PO Timothy Allen watched over § 87(2)(b) in the precinct after his arrest. PO Timothy Allen verifies this. § 87(2)(g)

§ 87(2)(b) Sgt. Calderone verifies that he was the desk sergeant while the incident in the cell allegedly took place, though he did not remember § 87(2)(b) talking to him just before he left at 8:02 AM. PO Christopher Allen and PO Shawn Ingalls admit to placing § 87(2)(b) under arrest with the help of PO Rios and PO Flores. § 87(2)(g)

§ 87(2)(g)

Credibility

§ 87(2)(g)

He did not know that PO Alps was involved until the officer identified himself as the arresting officer many hours later. He did not know he was bleeding until § 87(2)(b) told him at Central Booking. In fact, he said he did not know what the officers did to him in the cell until a black male at Central Booking told him what happened.

§ 87(2)(g) the four police officers all admitted to having physical contact with § 87(2)(b) PO Ingalls and PO Christopher Allen, though knowing that § 87(2)(b) made no allegations about what occurred in the apartment both admit to using various types of force to handcuff him. PO Timothy Allen § 87(2)(g) stating that he and PO Alps placed § 87(2)(b) in the cell and were the only officers to have contact with him thereafter. Though PO Alps said § 87(2)(b) was already in the cell when he and PO Timothy Allen arrived at the precinct, § 87(2)(g)

PO Timothy Allen and PO Alps admitted to entering the cell and trying different ways to get § 87(2)(b) situated in the cell. § 87(2)(g)

§ 87(2)(g)

Determination of fact

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b)

[REDACTED]

[REDACTED]

[illegible]

Date:

Date:

Date:

Date: